

PERSONNEL

56 Attachment 4

City of Waterville

Appendix D Tobacco-Free Workplace Policy Statement

The City of Waterville is dedicated to providing a healthy and productive work environment. As required by law (22 M.R.S. § 1580-A), it will be our policy to provide a tobacco-free workplace. This policy applies to all employees, clients, contractors and visitors. The Workplace Smoking Act of 1985 applies to all enclosed areas of business facilities in Maine where employees perform work and for which the employer is responsible.

“The scientific evidence indicates that there is no risk-free level of exposure to secondhand smoke.” The Health Consequences of Involuntary Tobacco Smoke: A Report of the Surgeon General. Atlanta GA: U.S. DHHS CDC Office on Smoking and Health 2006.

This policy is being posted and copies are being made available to anyone who requests one. The policy will be supervised by the management of the City of Waterville in accordance with Maine state law.

Effective immediately, smoking of tobacco products, as well as use of vaping products, including but not limited to cigarettes, cigars, vaping devices or non-FDA-approved nicotine delivery devices (i.e., electronic cigarettes), are banned in:

- All enclosed areas where work is performed, as well as in all restrooms, all meeting rooms, all lunch rooms and all private offices.
- All employer-owned and all employer-leased vehicles used by employees.
- All employee-owned vehicles used in the course of work whenever other employees or another person is in the vehicle for work-related reasons.

Smoking and vaping of tobacco products is only allowed outdoors. Smoking and vaping can only occur in outdoor locations that are at least 20 feet from any workplace entryway, vent, window or doorway. Smoking and vaping is never allowed in any location that allows smoke or vapors to circulate back into the building (22 M.R.S. § 1580-A).

“No Smoking and Vaping” signs will be posted at all building entrances and throughout the building. In addition, this policy will be included in training manuals and new employee orientation.

This workplace understands that tobacco is a legal product, and further recognizes that, as an employer, this workplace may not require that employees or prospective employees refrain from tobacco use when not at work, and will not discriminate against employees who use tobacco outside of employment.

WATERVILLE CODE

The success of this policy will depend on the courtesy and cooperation of tobacco users, smokers and nonsmokers. Each of you is responsible for following and helping enforce the policy. Problems should be brought to the attention of the appropriate supervisor. Violations of this policy will be handled through the established disciplinary procedures.